

Rajendra Singh Yadav v. Rang Lal Pal, Executive Engineer, Power Distribution Division

Allahabad High Court · Single Judge · 14 January 2016 · Contempt Application (Civil) No. 176 of 2016 · **Contempt disposed; Executive Engineer given ten more days to decide the Clause 6.5(b) application.**

HEADNOTE

In civil contempt of a writ direction to decide a Clause 6.5(b) Supply Code application expeditiously, the High Court, without finding wilful disobedience, granted the Executive Engineer ten further days to comply and disposed of the contempt with liberty to move afresh if the application remained undecided.

FACTUAL SUMMARY

The applicant had obtained a writ order dated 14 December 2015 directing that if he invoked Clause 6.5 of the U.P. Electricity Supply Code, 2005, an appropriate decision would be taken expeditiously. He moved a Clause 6.5(b) application on 21 December 2015. Alleging that the Executive Engineer failed to decide it within a week, he filed this civil contempt application seeking punishment under Section 12 of the Contempt of Courts Act, 1971.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

expeditious-decision-of-clause-6.5(b)-application

HOLDING

Where a writ court has directed that a consumer's application under Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 be decided expeditiously, and the consumer alleges non-compliance in civil contempt, the High Court may, without recording a finding of wilful disobedience, afford the licensee officer one further opportunity to decide the application within a stipulated time and dispose of the contempt at that stage with liberty to move a fresh application if the order remains uncomplied. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE EXECUTIVE ENGINEER HAD COMMITTED WILFUL CIVIL CONTEMPT OF THE 14 DECEMBER 2015 WRIT ORDER.

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NOT DECIDED — MERITS OF THE CONSUMER'S CLAUSE 6.5(B) BILLING OR QUANTIFICATION OBJECTION.

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